

FREE MOBILE data breach action

[Association], a certified consumer association, seeks €[to be set] to fund a French collective damages action (action de groupe) against FREE MOBILE on behalf of 24,633,469 victims (counted as contracts by the CNIL).

Source decision: CNIL Délibération SAN-2026-001 du 8 janvier 2026

Legal basis: GDPR art. 5-1-e, GDPR art. 32, GDPR art. 34

Status: appeal status not stated in the decision

DRAFT FOR LEGAL REVIEW · generated from the CNIL decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

VALUE OF THE CLAIM

79

Base-scenario damages of €147.8M: 25 × log10(total / €100k).

VICTIMS

100

Identifiable yes (40) + proof: individual notification (30) + consumers (15) + 24,633,469 victims (15).

DEFENDANT

62

Medium

Damages €147.8M ÷ net income of FREE MOBILE SAS €730.4M = 20.2% → Medium.

TYPE OF HARM

70

to be proven (10) + financial + non material (35) + recognised explicit (§ 82) (25).

TIMELINE

Limitation period end date not provided (to be confirmed by counsel)

Type of harm

IS THE HARM QUANTIFIED?

☐ Quantified

☐ Quantifiable

☒ To be proven

The decision concerns a GDPR data breach where the harm to individuals (e.g., risk of identity theft, phishing, or fraud) is not quantified or quantifiable. Under CJEU case law, each victim must prove their own damage, and the decision explicitly states uncertainty about causation (e.g., 'pas possible de déterminer avec certitude'). (§ 82, § 84)

NATURE

☒ Financial

☒ Non-material

☐ Overcharge

☐ Loss of chance

The decision recognises a risk of financial harm (e.g., fraudulent payments using exposed IBANs) and non-material harm (e.g., distress, fear of identity theft, phishing attempts) for the affected individuals due to the data breach.

Victims

NUMBER CNIL decision

24,633,469

contracts

IDENTIFIABLE?

☒ Yes

☐ Partly

☐ No

« l'attaquant a pu prendre connaissance, des données concernant 24 633 469 contrats » (p. 3) ✓ verbatim

CATEGORY

☒ Consumers

☐ Businesses

☐ Retail investors

☐ Employees

☐ Other

Proof of class membership: the breach notification email sent between 24 and 29 October 2024

Yes: Subscribers notified by email between 24 and 29 October 2024 and Free Mobile holds a list of 24,633,469 contracts (§ 21, § 3)

△ Refers to former customers whose data was retained excessively (§ 34, § 228) · Refers to terminated contracts whose data was retained excessively (§ 42, § 51) · The authority found the notification to the data subjects insufficient under Article 34 (§ 170)

Defendant

NATURE

☒ Private company

☐ Listed group

☐ Public body

☐ Association or union

SOLVENCY Computed

☐ Low

☒ Medium

☐ Strong

20.2% = damages €147.8M ÷ net income €730.4M (FREE MOBILE SAS, 2024) · score 62/100
0–39 Low · 40–69 Medium · 70–100 Strong (damages = base scenario)

Indicators: revenue €3.2bn (FREE MOBILE SAS, 2024, source); group ILIAD €10.0bn (2024, decision), insurance [], competent court civil Assumption

« En 2024, le chiffre d'affaires de la société ILIAD était de 10,024 milliards d'euros pour un résultat net de 367 millions d'euros. » (p. 2) ✓ verbatim

Value of the claim

€

Total = victims who opt in × compensation per victim Computed

CATEGORY OF HARM (OPT-IN TABLE)

Violation de données par défaut de sécurité, victimes identifiées

« a informé les personnes concernées de la survenance de la violation de données, par courriel, » (p. 2) ✓ verbatim · repaired by code, check support

Scenario	Opt-ins	€ / victim	Total
Low (1.4%)	344,869	€150	€51.7M
Base (4%)	985,339	€150	€147.8M
High (15%)	3,695,020	€150	€554.3M

Also supported by the decision: Violation de données sensibles (santé, banque) → €147.8M / €332.6M / €591.2M; Défaut d'information, conservation excessive, défaut de minimisation, inexactitude → €849,900 / €51.7M / €103.5M. The most conservative data-breach row is used.

EXPECTED OPT-IN

6.8%

± 2.95 pts · past cases in this category

FUNDER'S SHARE

30%

€44.3M at base scenario

Opt-in rates from the legal team's table of past cases; €150 per victim; each of the contracts counted by the CNIL is treated as one person. Benchmarks: minimum claim of €2–4M in France; investment of about 1/10 of claim value (European Commission study, 2025).

Timeline

Expected duration: [] years · Limitation period ends: [date]

Facts

Sept.–Oct. 2024

Source decision

8 Jan. 2026

Filing

[target date]

Judgment on liability

[estimate]

Victims opt in

[period]

Compensation paid

[estimate]

« Celle-ci a duré du 28 septembre au 22 octobre 2024. » (p. 2) ✓ verbatim

FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

- ☐ No funder influence over the conduct of the action
- ☐ Funding publicly disclosed
- ☐ Written conflict-of-interest policy
- ☐ Funder has no ties to the defendant

Ticked only by the association.

THE ASSOCIATION

[Name], certified since [date]

Statutory purpose: [link to the action]

Counsel: [law firm]

Contact: [name, role, email]

Summary of the decision

Délibération SAN-2026-001 du 8 janvier 2026. Every fact cites the paragraph (§) of the decision; each citation was checked against the decision text by code (△ = could not be verified).

0. Identification

The decision is **SAN-2026-001** of **8 January 2026** by the *formation restreinte* of the **CNIL** (Commission Nationale de l'Informatique et des Libertés) **header**. It is a **penalty decision** imposing a fine, an injunction with a periodic penalty (*astreinte*), and publication **operative part**. The organisation is **Free Mobile**, a mobile operator owned by the **Iliad group**; its name is **not redacted § 1**. The decision is **public with redactions** for personal data and legally protected secrets **header**. Appeal is possible; deadline **to be checked by the tool operative part**.

One-sentence summary: the CNIL fines **Free Mobile €27,000,000** for breaching **GDPR Articles 5-1-e) (excessive retention), 32 (security) and 34 (notification to data subjects)** after a **data breach affecting 24,633,469 contracts operative part**.

1. Facts

Who

The sanctioned organisation is **Free Mobile**, a **mobile operator** belonging to the **Iliad group**; Iliad is the parent company and holds **100 %** of Free Mobile **§ 1**. The **Iliad group** had **more than 50.2 million subscribers** in 2024; **Free Mobile** alone had **about 15.5 million mobile subscribers** as of **31 December 2024 § 1**. Iliad's **2024 revenue** was **€10.024 billion** with a **net profit of €367 million § 1**. The case originated from a **data breach notification** by Free Mobile **§ 3**. The **CNIL had received 2,614 complaints** from affected individuals by the date the sanction report was notified **§ 4**.

What

The processing at issue is the **management of subscriber contracts** via the **MOBO customer management tool § 19**. The **data concerned** include **identity data, contact data, contractual data, and, for "convergent" customers (mobile and fixed-line), IBANs § 20 △**. The **attacker accessed data on 24,633,469 contracts**, of which **19,460,891 were mobile (Free Mobile) and 5,172,577 were fixed-line (Free): "l'attaquant a pu prendre connaissance des données concernant 24 633 469 contrats" § 21**. The breach lasted from **28 September to 22 October 2024 § 2**.

The *formation restreinte* holds that the disclosure **"est de nature à créer un préjudice moral et matériel"** [is likely to cause non-material and material harm], citing **identity theft, phishing and fraudulent payments with a stolen IBAN § 82**. However, the CNIL admits it is **"pas possible de déterminer avec certitude"** [not possible to determine with certainty] that the frauds reported by complainants come from this breach **§ 84**. The decision does not state any earlier penalties or formal notices against Free Mobile.

Where

The territory is **France**. The CNIL acted as the **lead authority**; no one-stop-shop cooperation is mentioned **header △**.

When

The **breach period** was **28 September to 22 October 2024 § 2**. Free Mobile **discovered the incident on 21 October 2024** via an alert from the attacker **§ 2**. It **notified the CNIL on 23 October 2024** and **completed the notification on 5 November 2024 § 3**. It **informed data subjects by email between 24 and 29 October 2024 § 3**. The **on-site inspection** took place on **8 November 2024 § 6**. The **rapporteur was appointed on 17 February 2025 § 7**. The **sanction report was notified on 25 July 2025 § 9**. The **hearing before the restricted committee** was held on **15 December 2025 § 15**. The **decision was adopted on 8 January 2026 header △**.

2. Procedure

The case began with Free Mobile's **data breach notification** to the CNIL on **23 October 2024 § 3**. The **CNIL President ordered an on-site inspection on 6 November 2024 § 5 △**. The **inspection took place on 8 November 2024** at Free Mobile and Free's premises **§ 6**. The **CNIL President decided on 24 July 2025 to split the sanction procedure** initially targeting both Free Mobile and Free into two separate procedures **§ 8**. The **rapporteur notified the sanction report to Free Mobile on 25 July 2025**, alleging breaches of **Articles 5-1-e), 32 and 34 GDPR** and proposing a fine, an injunction with a periodic penalty, and publication **§ 9**. Free Mobile **submitted written observations on 15 September 2025 and 17 November 2025 § 10, 12 △**. The **rapporteur replied on 15 October 2025 § 11 △**. The **instruction was closed on 18 November 2025 § 13**. Free Mobile **requested a postponement of the hearing**, which was granted; the hearing was rescheduled to **15 December 2025 § 15**. Free Mobile **requested a closed session (huis-clos)**, which was **refused on 3 December 2025 § 16**. **Oral observations** were presented during the hearing **§ 17**. Free Mobile **submitted a note in deliberation on 19 December 2025 § 17 △**.

The decision **does not mention any parallel criminal or other administrative proceedings**.

3. Legal basis

The *formation restreinte* establishes **three breaches**:

- **Article 5-1-e) GDPR** (excessive retention of personal data) **§ 52**.
- **Article 32 GDPR** (failure to implement appropriate technical and organisational security measures) **§ 151**.
- **Article 34 GDPR** (failure to communicate the personal data breach to data subjects in a complete manner) **§ 199**.

The decision **does not reject any breach** as unfounded.

4. Arguments

The company argues that **the rapporteur wrongly attributes the same breaches to both Free Mobile and Free** without considering their respective responsibilities **§ 24**. The *formation restreinte* holds that **each company is responsible for its own processing** and that the **procedures were split**, so the argument is **rejected § 26**.

The company argues that **Article 32 GDPR is an obligation of means, not result**, and that the **occurrence of a data breach alone does not establish a breach § 56**. The *formation restreinte* **accepts this legal qualification** but holds that **the breach is established because the security measures were insufficient** and facilitated the attack **§ 58**.

The company argues that **the principle of legality (*légalité des délits et des peines*) is violated** because Article 32 GDPR and CNIL/ANSSI recommendations are not prescriptive **§ 57**. The *formation restreinte* **rejects this argument**, citing **CJEU case law** and **French administrative law**, and holds that **recommendations clarify obligations** and that the **elements of the breach are defined precisely § 65**.

The company argues that **the treatment does not present a high risk** because it does not process **special-category data (Article 9 GDPR) § 74**. The *formation restreinte* holds that **the risk is high** due to the **massive volume of data (24,633,469 contracts)**, the **sensitive nature of certain data (IBANs)**, and the **potential for identity theft, phishing, and fraudulent payments § 73**.

The company argues that **IBAN alone cannot enable fraudulent direct debits** and that **banks have safeguards § 75**. The *formation restreinte* holds that **IBANs can be used for fraudulent payments** on websites that validate SEPA mandates via a simple checkbox, and that **the risk of phishing and identity theft is high § 82**.

The company argues that **it could not anticipate all future forms of exploitation** of the breach and that **its notification email was sufficient § 174**. The *formation restreinte* holds that **the email lacked essential information** (description of remediation measures, probable consequences, and measures data subjects should take) and that **a two-tier communication (email + helpline) does not replace the obligation to include essential information in the first-tier notification § 188-199 △**.

The company argues that **the fine is disproportionate** and that **publication would harm its security § 239**. The *formation restreinte* **rejects these arguments**, citing the **gravity of the breaches, the number of affected individuals, and the need for deterrence § 240**.

The company argues that **the principle *non bis in idem* is violated** because the same facts are sanctioned twice (for Free Mobile and Free) **§ 209**. The *formation restreinte* holds that **the procedures are distinct, the companies are separate legal entities, and the breaches are different**, so the principle is **not violated § 213**.

Remaining weak points. The CNIL **admits uncertainty** about whether the **excessive retention (Article 5-1-e)) aggravated the security breach (Article 32)**: "les éléments du dossier portés à sa connaissance ne lui permettent pas de se prononcer sur le point de savoir si l'absence d'implémentation de la politique de durée de conservation des données a ou non permis à l'attaquant d'accéder à une profondeur historique de données plus importante," [the elements of the file do not allow it to determine whether the failure to implement the data retention policy allowed the attacker to access a greater historical depth of data] **§ 214**. The CNIL also **cannot confirm with certainty** that the frauds reported by complainants stem from this breach **§ 84**.

5. Decision

The *formation restreinte* imposes a **fine of €27,000,000** for the breaches of **Articles 5-1-e), 32 and 34 GDPR operative part △**. The fine is calculated based on the **Iliad group's 2024 revenue (€10.024 billion)**, as Free Mobile and Iliad form a **single economic unit** under EU competition law **§ 244**. The **criteria under Article 83 GDPR** considered include:

- **Gravity**: the breaches affected **24,633,469 contracts** and **15 million former subscribers' data were retained excessively**; the **security failures facilitated the breach**; the **notification to data subjects was incomplete § 222**.
- **Negligence**: Free Mobile **failed to implement retention policies and security measures** despite having the **resources to do so § 228**.
- **Number of affected individuals**: **24,633,469 contracts** were affected by the breach; **only 58,239 individuals called the helpline § 224**.
- **Mitigating factors**: Free Mobile **took remediation measures during the procedure**, but **not all were completed by the hearing date § 233**.

The *formation restreinte* **does not impose an injunction for Article 34 GDPR** but orders Free Mobile to comply with Articles 5-1-e) and 32 GDPR within:

- **6 months for Article 5-1-e)**: implement the **data retention policy** by **purging data from contracts terminated for over 10 years** and **retaining only data strictly necessary for accounting purposes for 10 years operative part, 2nd indent**.
- **3 months for Article 32 GDPR**: implement **appropriate technical and organisational security measures operative part, 2nd indent**.

The injunction is **assorted with a periodic penalty (*astreinte*) of €50,000 per day of delay**, payable after the **6-month and 3-month deadlines** respectively **operative part, 3rd indent**.

The decision **will be published on the CNIL's website and Légifrance** and **will be anonymised after 2 years operative part, 4th indent △**.

6. Appeal

The decision **can be appealed before the Conseil d'État operative part**. The **deadline is to be checked by the tool**. The decision **does not mention whether an appeal has been lodged**.